



Appeal Decision

Site visit made on 4 August 2026

by Alison Fish BA (Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 21 August 2026

Appeal A Ref: 6009864

Land outside 80 Middle Street, Yeovil BA20 1LT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Thomas Johnston of NWP Street Ltd against the decision of Somerset Council.
 - The application Ref is 26/00448/FUL.
 - The development proposed is installation of 1 no. new communications kiosk with integrated defibrillator and advertising display.
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Appeal B Ref: 6009865

Land outside 80 Middle Street, Yeovil BA20 1LT

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) against a refusal to grant express consent.
 - The appeal is made by Mr Thomas Johnston of NWP Street Ltd against the decision of Somerset Council.
 - The application Ref is 26/00449/ADV.
 - The advertisement proposed is installation of 1 no. new communications kiosk with integrated defibrillator and advertising display.
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Decision

Appeal A

1. The appeal is allowed and planning permission is granted for installation of 1 no. new communications kiosk with integrated defibrillator at land outside 80 Middle Street, Yeovil BA20 1LT in accordance with the terms of the application, Ref 26/00448/FUL, and the plans submitted with it, subject to the conditions in the attached schedule.

Appeal B

2. The appeal is allowed and express consent is granted for the advertising display at land outside 80 Middle Street, Yeovil BA20 1LT in accordance with the terms of the application, Ref 26/00449/ADV. The consent is for five years from the date of this decision and is subject to the five standard conditions set out in the Regulations and the conditions in the attached schedule.

Preliminary Matters

3. On 17 August 2026 a revised National Planning Policy Framework (the Framework) was published. There have been no fundamental changes relevant to the main

issues in this appeal. Therefore, I will not prejudice any party by taking the Framework into account in reaching my decision.

4. There are two appeals relating to the same site which were submitted on the same application form. I have therefore used the same description for both appeals in the banner heading but have varied them accordingly in the formal decisions above.
5. They differ in that Appeal A relates to planning permission and Appeal B relates to express advertisement consent. However, to avoid duplication and as they raise similar and interrelated issues, I have dealt with the two appeals together, except where otherwise indicated.
6. In respect of Appeal B, the Regulations¹ require that decisions are made only in the interest of amenity and public safety. Therefore, whilst I have taken account of the development plan policy the Council refers to, insofar as it may be relevant, it has not been decisive in my determination of Appeal B.

Main Issue

7. The main issue in respect of Appeals A and B is the effect on the character and appearance and amenity of the area.

Reasons

8. The appeal proposal relates to the installation of a new kiosk, not unlike a traditional telephone box, housing a telephone, touchscreen and defibrillator. It would be open on two sides and feature an illuminated digital advertisement display on the rear.
9. The appeal site is a section of pavement in Middle Street, a pedestrianised area of the town centre. Located within the Primary Shopping Area and Primary Shopping Frontages as designated in the South Somerset Local Plan 2006-2028, adopted March 2015 (LP), the appeal site is located in a busy, commercial environment.
10. Middle Street is a wide, open thoroughfare for pedestrians, rising from east to west. The recent demolition of properties along its northern side creates an enhanced feeling of space. At the higher, western end public realm works have been carried out in an area known as 'The Triangle' to create an amphitheatre with seating for 100 people, a water feature and improved hard and soft landscaping.
11. When viewed from The Triangle, the appeal site is located at a much lower level. This, together with the compact form and modest scale of the proposed kiosk would prevent it from appearing overly dominant or visually intrusive in the street.
12. The kiosk would be located close to existing street furniture. The addition of the kiosk in this busy commercial setting would not be incongruous. Its off-centre siting towards the southern side of Middle Street means that when approaching along Middle Street from the east, the perception of space would not be lost. The rising gradient of Middle Street means that The Triangle would remain a prominent and elevated feature in the street and the kiosk would not detract from the positive contribution The Triangle makes to the street scene.
13. The advertisement display would be visible from this direction, being located on the rear of the kiosk. However, the advertisement would be seen in the same context as

¹ Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007

the numerous surrounding advertisements on this busy commercial street, which includes other free-standing advertisements close by. As such, it would not appear out of keeping with the commercial character of the surroundings, and subject to appropriate controls on the level of illumination, it would not be visually dominant in this well-lit area.

14. In addition, the width of the street and the visual distance to the nearby signage would be sufficient to prevent excessive visual clutter that would harm the amenity of the area.
15. I therefore find that in respect of Appeal A, the proposal would not undermine the quality of the public realm. The effect on the character and appearance of the area would therefore be acceptable and the proposal would comply with Policy EQ2 of the LP which seeks to achieve high-quality development which respects the local context.
16. With regards to Appeal B and having regard to the Regulations and Policy EQ2, insofar as it is relevant, I conclude that the advertisement would not be harmful to amenity.

Other Matters

17. Policy CO1 of the Framework states that in considering proposals for telecommunications infrastructure, the need for the expansion or upgrading must not be questioned and that substantial weight should be given to the benefits of maintaining or improving network coverage.
18. The siting of the kiosk provides in excess of 3 metres of unobstructed footway in all directions. Pedestrian flows would not be limited or impeded given the spacious width of Middle Street.
19. The maintenance and upkeep would be the responsibility of the operator and this could be secured through a condition requiring adherence to the management plan. The management plan also details arrangements for the installation of CCTV and how anti-social behaviour incidents would be addressed.
20. The appellant's design and access statement confirms that the proposed communication kiosk would be in full compliance with the International Commission on Non-Ionizing Radiation Protection standards. Moreover, there is no substantive evidence before me that the proposal would lead to other public health issues, including screen addiction. Conditions would restrict luminance to an appropriate level.
21. Given the scale and location of the proposal, there is no requirement to demonstrate achievement of sustainability principles and there is no substantive evidence that the proposal would be harmful to wildlife.
22. It is understood that there is an intention to provide a new footway and that the proposed kiosk may then be sited close to the junction where the footway would emerge. However, in the absence of substantive evidence regarding the certainty of such a proposal or that the siting of the proposed kiosk would prevent this from occurring, I see no reason to withhold permission on this basis.
23. The content of the advertisements in Appeal B is not relevant to my consideration of the appeal.

Conditions

Appeal A

24. In addition to the management plan condition referred to above and the standard time condition, it is necessary to specify the approved plans in the interests of certainty.
25. Based on the information available, this permission is considered to be one which will not require the approval of a biodiversity gain plan before development is begun because a statutory exemption applies.

Appeal B

26. In addition to the five standard conditions, conditions controlling luminance levels, display time and effects are necessary in the interests of the visual amenity of the area. However, given that the advertisement is to be displayed in a wholly pedestrianised area, a condition preventing content which resembles traffic signs is not necessary.

Conclusion

27. For the above reasons, both Appeal A and Appeal B are allowed.

Alison Fish

INSPECTOR

Schedule of conditions

Appeal A

- 1) The development hereby permitted shall begin not later than three years from the date of this decision.
- 2) The development hereby permitted shall be carried out in accordance with drawing nos: CK0193/01 Location Plan; CK0193/02 Site Plan Proposed and NWP-KIOSK/001 Elevations.
- 3) The development shall be installed, managed, maintained and thereafter operated in accordance with the submitted New Communication Kiosk Management Plan dated October 2025.

Appeal B

- 1) The intensity of the illumination of the digital display screen shall be no greater than 300 candelas per square metre (cd/m²) between dusk and dawn in line with the maximum permitted recommended luminance as set out by the Institute of Lighting Professionals in its 'Professional Lighting Guide 05: The Brightness of Illuminated Advertisements' (or its equivalent in a replacement Guide).

- 2) The minimum display time for each piece of content on the digital display screen shall be 10 seconds.
- 3) There shall be no moving images, animation, video or full motion images displayed.
- 4) The interval between successive advertisements shall be no greater than 1 second and the complete display shall change without effect. The display shall include a mechanism to default to a blank or black screen in the event of malfunction, or if the advertisement is not in use.